

22STCV15874 22STCV15874

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-08-24

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Case Number: 22STCV15874 Hearing Date: August 24, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August
24, 2026

CASE: Brandon Hoxey, et
al. v. Icehouse Ventures V, LLC, et al.

CASE NO.: 22STCV15874

PLAINTIFF'S
EX PARTE MOTION TO ENFORCE SETTLEMENT AGREEMENT;

SANCTIONS,
AND FOR AWARD OF ATTORNEY FEES OF \$12,700

I. INTRODUCTION

On July 17, 2026, Plaintiff, Brandon Hoxey, filed an ex parte application for an order enforcing the settlement agreement with Defendants, Icehouse Ventures V, LLC and Mashcole Property Management, Inc., pursuant to Code of Civil Procedure section 664.6 and entering judgment in Plaintiff's favor. Plaintiff argued relief was necessary because Defendants failed to make any payments under the parties' Settlement Agreement.

On

July 22, 2026, the court denied the ex parte application. The court set a hearing to consider the application as a regularly noticed motion and directed Plaintiff to give notice.

On

August 13, 2026, Defendant filed an opposition.

At

the time of this writing, no reply had been filed.

II. DISCUSSION

The court will deny the motion. As Defendants explain in their opposition, Defendants were not required to make any payments until all parties executed the Settlement Agreement. The Settlement Agreement states, in relevant part,

Subject to the

provisions of Paragraphs 4-5, *infra*, the SETTLEMENT PAYMENT will be paid within fourteen (14) days of DEFENDANTS' receipt of the completely executed AGREEMENT.

The SETTLEMENT PAYMENT will be made payable to "The Law Offices of Lance M. Filer Client Trust Account" and sent to its address.

(Filer

Decl., Ex. A, emphasis in original.) Critically,

the copy of the Settlement Agreement submitted by Plaintiff was not signed by all parties. (*Id.*) By the express terms of the Settlement

Agreement, the time for Defendants to perform has not run. Notwithstanding that defect, Defendants further explain their insurance carrier nevertheless sent a check in the amount of \$175,000 on August 11, 2026, as a showing of good faith. (Day Decl., ¶¶ 8-10.)

III. CONCLUSION

Based on the foregoing, the motion is DENIED WITHOUT PREJUDICE.

Plaintiff

is ordered to give notice, unless waived.

Dated: August 24, 2026

Brock T. Hammond

Judge of the Superior Court